

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Delhi **PS:** EO-I Delhi
Year: 2024
FIR No: RC2192024E0004 **Date:** 23/10/2024

2. **Acts & Sections:**

Acts	Sections	R/W Section
IPC	120-B	r/w 409 & 420 of IPC and substantive offences thereof.
IPC	409	Substantive offences
IPC	420	Substantive offences
PC Act-1988 (As amended in 2018)	13(2)	r/w 13 (1) (d) and substantive offences thereof.

3. **Suspected offences:** Bank Fraud
(a) **Occurrence of offence:**
Day: **Time Period:**
From Date: 2013 **To Date:** 2015
(b) **Information Received at PS:** CBI, EO-I, New Delhi
Date: 09/10/2024
(c) **General Diary Reference:**
Entry No.: 06
Date: 23/10/2024 **Time:** 18:23:42

4. **Type of Information:** Written

5. **Place of Occurrence:** Ghaziabad (Uttar Pradesh)

(a) **Direction & distance from PS:**

Beat No.:

(b) **Address:**

Plot No.:

Area:

City:

Pin:

State:

District:

(c) **In case, outside the limit of this Police Station, then**

Name of PS:

District:

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Rajesh Kumar Singh

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
--------------	---------------	----------------

(f) **Occupation:** Chief General Manager, Canara Bank

(g) **Address:**

Plot No	Area	City	State	District	Pin
---------	------	------	-------	----------	-----

7. **Details of known/suspected/unknown accused with full particulars:**

Tanveer Me 23.10.24
अशोक कुमार / ASHOK KUMAR
पुलिस अधीक्षक / Supdt. of Police
कें.अ.ब्यूरो, आर्थिक अपराध-I / CBI, EO-I
5-बी, तीसरी मंजिल / 5-B, 3rd Floor
सी.जी.ओ. कॉम्प्लेक्स / CGO Complex
लोधी रोड, नई दिल्ली / Lodhi Road, New Delhi

Accused 1**Name:** Mr. Sameer Qureshi(1), **Father/Husband name:** Mohd Ashan Ali**Address:**

R/o 75 Mohalla Dwarkapuri, Jassipura, Ghaziabad, Ghaziabad, Uttar Pradesh, 201001

Accused 2**Name:** Mr. Mohd Shahzad(2), **Father/Husband name:** Mohd Ashan Ali**Address:**

101, Mohalla Dwarkapuri, Jassipura, Ghaziabad, Ghaziabad, Uttar Pradesh, 201001

Accused 3**Name:** Mr. Mohd Naeem(3), **Father/Husband name:** Mohd Ashan Ali**Address:**

20, Jassipura, Ghaziabad, Ghaziabad, Uttar Pradesh, 201001

Accused 4**Name:** Ms. Iqbal Jahan(4), **Father/Husband name:** Mohd Ashan Ali**Address:**

75, Mohalla Dwarkapuri, Jassipura, Ghaziabad, Ghaziabad, Uttar Pradesh

Accused 5**Name:** M/s Mannat Ispat Pvt. Ltd. through Director(5)**Address:**

20, Jassipura, Ghaziabad- 201001, Uttar Pradesh, Ghaziabad, Ghaziabad, Uttar Pradesh, 201001

Accused 6**Name:** Unknown Public Servant(s) & Private Person(s)**Address:****8. Reasons for delay in reporting by the complainant/informant:**

No delay

9. Particulars of properties stolen:

Item Name	Age of Property	Estimated Value (in INR)
-----------	-----------------	--------------------------

10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

A written complaint dated 20.07.2024 addressed to Head of Zone, BS&FC, Central Bureau of Investigation, Head Quarters, CGO Complex, Lodhi Road, New Delhi has been received from Sh. Rajesh Kumar Singh, CGM, Canara Bank, Circle Office, Nehru Place, New Delhi-110019 against accused persons. It is alleged that the borrower i.e. M/s Mannat Ispat Pvt. Ltd. cheated the bank causing wrongful loss and also committed criminal breach of trust.

The complaint, which is part of FIR is attached herewith.

Since the facts and circumstances mentioned in the complaint prima facie disclose the commission of offences U/s 120-B r/w 409 and 420 of IPC and Section 13 (2) r/w 13 (1) (d) of PC Act, 1988 (as amended in 2018) against 1. Mr. Sameer Qureshi S/o Mohd Ashan Ali, R/o 75 Mohalla Dwarkapuri, Jassipura, Ghaziabad- 201001, UP, 2. Mohd Shahzad S/o Mohd Ashan Ali R/o 101, Mohalla Dwarkapuri, Jassipura, Ghaziabad- 201001, UP, 3. Mohd Naeem S/o Mohd Ashan Ali, R/o 20 Jassipura, Ghaziabad- 201001, UP, 4. Smt. Iqbal Jahan W/o Mohd Ashan Ali, R/o 75 Mohalla Dwarkapuri, Jassipura, Ghaziabad- 201001, UP, 5. M/s Mannat Ispat Pvt. Ltd. through the Director and 6. Unkwon Public Servants & Private Persons. A Regular case is registered against them and entrusted to Sh. M.C.R. Mukund, Addl. SP, CBI, EO-I, New Delhi for investigation.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:**(1) Registered the case and took up the investigation:** Yes

OR

(2) Directed**Name of IO:**

Mukesh Chandra Roy Mukund

Tanweer Me 23.10.24

अशोक कुमार / ASHOK KUMAR
पुलिस अधीक्षक / Supdt. of Police
कें.अ.ब्यूरो, आर्थिक अपराध-I / CBI, EO-I
5-बी, तीसरी मंजिल / 5-B, 3rd Floor
सी.जी.ओ. कॉम्प्लेक्स / CGO Complex
लोधी रोड, नई दिल्ली / Lodhi Road, New Delhi

Rank:

ADDL SUPERINTENDENT OF POLICE (EO-I Delhi)

No:

46873

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

Complaint dated 20.07.2024

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of Officer
in-charge Police Station

Name: Ashok Kumar / ASHOK KUMAR

Rank: SUPDT. OF POLICE (EO-I Delhi)

कें.अ.ब्यूरो, आधिक अंपराध-1 / CBI, EO-I

5-बी, तीसरी मंजिल / 5-B, 3rd Floor

सी.जी.ओ. कॉम्प्लैक्स / CGO Complex

लोधी रोड, नई दिल्ली / Lodhi Road, New Delhi

15. Date and time of dispatch to the Court:

(A Government of India Undertaking)
(Head Office: Bangalore 560 002)

Ref. No.: DC/HRM/CBI-70/854/2024/AKS

Date: 20-07-2024

Head of Zone
BS & F Zone
Central Bureau of Investigation
Head Quarters, CGO Complex,
Lodhi Road, New Delhi

642(P)
31/07/2024

1244

SP/BCC

Dear Sir,

05-08-2024

(R 31) x

Subject: Request for registering case against M/s Mannat Ispat Pvt. Ltd., its directors and guarantors, for defrauding our SME Ghaziabad branch, now ARM II Delhi Branch to the extent of Rs. 20.99 Crores

I, Rajesh Kumar Singh aged about 50 years, working as Chief General Manager, Canara Bank, Circle Office, Nehru Place, New Delhi is duly authorised by the competent authority to file this complaint of fraud against M/s Mannat Ispat and its directors and guarantors with regard to commission of fraudulent acts by disposing of hypothecated assets and mortgaged properties without the knowledge of the bank

The Competent Authority had permitted to declare the account as FRAUD and Bank had reported to RBI vide on 22.03.2024 vide CANA 2401-0072

The detailed complaint on our behalf is as follows:

SI	Name of the Bank	Canara Bank
1.	Name of the Branch	The credit facility to the borrower company was sanctioned by Canara Bank, SME Branch, at BS Industrial Area, Ghaziabad, UP and now account has been transferred to Canara Bank ARM-2 Branch, at A-27, 1 st Floor, Hauz Khas, New Delhi-110016.
2.	Date of lodging of complaint	31/07/2024
3.	Time, date & place of occurrence of fraud	Canara Bank sanctioned credit facilities in form of OCC limit of Rs. 200 Lakh and Term Loan of Rs. 200 Lakh vide sanction dated 13.09.2013 which were time to time renewed with enhancement, lastly for OCC limit of Rs. 400 Lakh vide Sanction letter dated 17.03.2015. The directors/Guarantors of borrower company has disposed of the plant & machinery hypothecated with Bank and mortgaged land without the knowledge of the bank on different dates.

अंचल कार्यालय, दिल्ली
8th मंजील, अंसल टावर
38 नेहरू प्लेस, नई दिल्ली-110019

Circle Office, Delhi
8th Floor, Ansal Tower,
38 Nehru Place, New Delhi-110019.

दूरभाष नं. / Tel No. 011 - 26292226
ई-मेल / E-Mail: dacodcl@canarabank.com
वेब / Web: www.canarabank.com

(A Government of India Undertaking)
(Head Office: Bangalore 560 002)

4. Name of the Complainant	Canara Bank, through Sh. Rajesh Kumar Singh, Chief General Manager, Circle Office- Delhi, duly authorised to file this complaint on behalf of the complainant bank.
5. Date of NPA	19.11.2016
6. Brief details of fraud	1. M/s Mannat Ispat Pvt Ltd was engaged in manufacturing of MS Ingots was dealing with our bank since 2013. On an application duly made by M/s Mannat Ispat Pvt. Ltd. having registered office at 20, Jassipura, Ghaziabad-201001, U.P. through its directors Mr. Sameer Qureshi & Mr. Mohd. Naeem availed credit facilities in form of OCC limit of Rs. 200 Lakh under loan account no. 2647261015176 and Term Loan of Rs. 200 Lakh under loan account no. 2647773000253 vide sanction dated 13.09.2013 which were time to time renewed with enhancement, lastly for OCC limit of Rs. 400 Lakh from our Bank vide Sanction letter dated 17.03.2015. 2. To secure the credit facilities, Sh. Sameer Qureshi, Sh. Mohd. Shahzad, Sh. Mohd. Naeem & Smt. Iqbal Jahan stood as personal guarantor and executed Guarantee Deed in favour of the bank acknowledging therein their liability same and equal with the principal borrower. 3. To secure the repayment of credit facilities availed from the Bank, the borrower/mortgagor created security interest/ charge / mortgage in favor of the bank, by deposit of title deeds and executed all required documents and security agreements for the timely repayment of the said credit facilities. Details of properties are as follows : a. Factory Land and Building situated at Khasra no. 31, 39, 40, 41 & 42, admeasuring 0.3156 Hect. Situated at Alipur Jijmana Road Meerut in the name borrower company valued Rs 309.00 Lakhs. b. Shop no. III, K-06, Ground Floor, GDA Market, Nehru Nagar, Ghaziabad admeasuring 9.10 sq. mtr. in the name of Md. Naeem (already sold by bank) c. Open land situated at Khasra no. 33-34K and 35A one colony, village Budhera Jahidpur Pargana, Tehsil & Distt Meerut admeasuring 677.40 sq. mtr, in the name of Md. Shahzad (Reported to have been sold to different persons by borrower in parts)

(A Government of India Undertaking)

(Head Office: Bangalore 560 002)

	d. Negative Lien on residential house situated at H. No. 101-1/4 ward no. 74 Dwarkapuri, Ghaziabad in the name of Smt. Iqbal Jahan valued Rs 30.24 lakhs VR dated 18.01.2020 e. Hypothecation of plant and machinery, goods, book debts and receivable already sold customer without knowledge of bank. 4. The loan account of Borrower Company was classified as NPA on <u>19.11.2016</u> as per RBI guidelines. The authorized officer of the bank had issued demand notice dated 08.12.2016 and symbolic possession notice dated 22.10.2021 as per SARFAESI Act, 2002. 5. The Bank has also filed OA no. 03/2018 tiled "Canara Bank vs M/s Mannat Ispat Pvt. Ltd." before Ld. DRT Lucknow against the company, directors and guarantors for recovery of outstanding dues. The Ld. DRT Lucknow vide final order dated 31.03.2022 allowed the OA and issued recovery certificate being DRC 196/2023 and the execution is going on before Recovery Officer at DRT Lucknow. 6. Upon visit of the officer of the bank on the mortgaged premises on 22.10.2021 for valuation of the hypothecated plant and machinery, it was found that the directors/Guarantors of borrower company have disposed of the plant & machinery hypothecated with bank without knowledge of the bank on different dates to different persons and sale proceeds have not been credited to the loan accounts. Further, on enquiry made in the area it was noticed that mortgaged property at Khasra no. 33-34K and 35A one colony, village Budhera, Jahidpur Pargana, Tehsil & Distt Meerut admeasuring 677.40 sq. mtr, in the name of Md. Shahzad has been sold in parts to different persons without the knowledge of the bank. However, consideration amount received from the purchasers or transferees of property was not deposited in the bank for the satisfaction of dues or in the loan account of credit facilities availed by the borrower company. 7. Thus, with the malafide intention to defraud/ cheat the Bank and to mint the public money, M/s MannatIspat Pvt. Ltd., Sh. Sameer Qureshi, Mr. Mohd. Shahzad, Mr. Mohd. Naeem & Smt. Iqbal Jahannamed above being owners of the mortgaged property, connived to sell secured assets of the Bank (the part of
--	---

(A Government of India Undertaking)

(Head Office: Bangalore 560 002)

		the mortgaged property) fraudulently to cause wrongful loss to the Bank and wrongful gain for themselves and have committed the offences of cheating, criminal breach of trust, misappropriation of funds, fraud, etc.
		8. That as on 30-06-2024, an amount of Rs. 20.99 cr is still outstanding in the account of the Bank.
7.	Name of accused persons	1. M/s Mannatlspar Pvt. Ltd. Property at Khasra No 31,39,40,40 & 42 Alipur Jijmana Hapur - Meeruth Road (UP) Also At Property at 20- Jassipura Ghaziabad -201001 (UP) 2. Sh. Sameer Qureshi S/O Mohd Ashan Ali R/O 75 Mohalla Dwarkapuri Jassipura Ghaziabad - 201001 U.P. 3. Mr. Mohd. ShahzadS/O Mohd Ashan Ali R/O 101- Mohalla Dwarkapuri Jassipura Ghaziabad - 201001 U.P. 4. Mr. Mohd. NaeemS/O Mohd Ashan Ali R/O 20 Jassipura Ghaziabad -201001 U.P. 5. Smt. Iqbal Jahan W/O Mohd Ashan Ali R/O 75- Mohalla Dwarkapuri Jassipura Ghaziabad - 201001 U.P. 6. Unknown Public Servants & Unknown Others
8.	Role of accused persons including the role of public servants	The accused persons are company, its directors and guarantors/mortgagors. The directors of the company had disposed of the hypothecated assets without the knowledge of the bank. Further, directors of the company in connivance with the guarantors/mortgagors disposedof the mortgaged property without the knowledge of the bank.
9.	Grave irregularities committed by public servants	The role of unknown public servants maybe looked into.
10.	Role of common conspirator	The Bank suspects all the accused persons conspired and connived.
11.	The name and address of prosecution witnesses	1.Prashant Pandey, Chief Manager, (Staff no 75801) currently posted at Bengaluru ARM 2.Abdhesh Kumar, Senior Manager, (Staff no 71394) currently posted in Delhi Circle Office 3.Barun Ekka, Chief Manager, (Staff no 67573) currently



(A Government of India Undertaking)

(Head Office: Bangalore 560 002)

		posted at BS Industrial Area, Ghaziabad 4.Jyoti Jain, Chief Manager, (Staff no 84680) currently posted at Integrated Treasury wing, Mumbai
12.	Action taken by the bank against public servants including departmental proceeding initiated if so, details thereof	Yes, Departmental proceedings are conducted and concluded.
13.	When matter reported as Fraud to RBI	The Competent Authority had permitted to declare the account as FRAUD and Bank had reported to RBI vide on 22.03.2024 vide CANA 2401-0072
14.	Whether investigation conducted by the Bank. If yes, details of the major findings	Yes. As per investigation report dated 13.09.2022, following has been observed by the investigation officer: - the directors/Guarantors of borrower company have disposed of the plant & machinery hypothecated with bank without knowledge of the bank on different dates to different persons -mortgaged property at Khasra no. 33-34K and 35A one colony, village Budhera, Jahidpur Pargana, Tehsil & Distt Meerut admeasuring 677.40 sq. mtr, in the name of Md. Shahzad has been sold in parts to different persons without the knowledge of the bank
15.	Whether forensic audit was conducted. If yes, findings of the forensic audit report. Copy of the Forensic Audit report to be submitted	NA
16.	Availability of original documents	The original loan document and mortgage papers are kept in Canara Bankhaving its SME branch at BS Industrial Area, Ghaziabad, UP
17.	Whether accused persons were involved in any other fraud in the bank on an earlier occasion	No.
18.	Whether the fraud has interstate, International, If yes, give the details	No.



(A Government of India Undertaking)
(Head Office: Bangalore 560 002)

19.	Role of CA, Statutory Auditors, StockAuditors, Empanelled Valuers etc., if any are mentioned.	No
20.	Whether registration is authorized by CVO of the Bank	NA. Since the amount involved in the fraud is less than 50 Crores, authorisation from CVO is not required as per Central Vigilance Commission (CVC) manual (updated 2021).

In light of judgement given by Hon'ble Supreme Court in matter of State Bank of India V/s Rajesh Agarwal (Civil Appeal no 7300 of 2022), the proposed accused/Borrower was accorded appropriate opportunity before declaring the account as fraud vide notice dated 02.01.2024 but Bank had received no reply/representation from Company or its Directors to the said notice.

In this regard, we submit that M/s Mannat Ispat Pvt Ltd, its Directors and guarantors/mortgagors had committed offences of cheating, criminal breach of trust, misappropriation of funds with a criminal conspiracy with each other and with a common intention perpetrated fraud on bank to cause wrongful loss to the Bank and wrongful gain for themselves.

In view of the facts and circumstances stated above, I being the authorized official of Canara Bank, request your good selves to take cognizance of the Complaint, register the Complaint & arrange to investigate into the criminal aspects of fraud allegedly committed by the accused, i.e., M/s Mannat Ispat Pvt Ltd, its Directors and guarantors/mortgagors and other unknown public servants and unknown persons for perpetrating fraud on Canara Bank and take necessary action according to law for allegedly committing cheating, criminal breach of trust, misappropriation of funds and thereby committing the fraudulent acts under appropriate provisions of law and causing loss to Bank and public money. A copy of FIR may please be furnished to us.

We assure to extend our fullest cooperation to CBI in the process of Investigation.

Yours faithfully

Chief General Manager
Circle Head

R E Br



Endst. No. DP 219 2024/6379 /RC 219 2024 E0004

Dated 23/10/24

1. The Court of Special Judge, CBI Ghaziabad, Uttar Pradesh
2. The Head of Zone, CBI, EO, New Delhi
3. The Chief Vigilance Officer, Canara Bank, Head Office, 112, 3rd Floor J.C. Road, Bengaluru-560002
4. Rajseh Kumar Singh, CGM, Canara Bank, Circle Office, Nehru Place, New Delhi.
5. Shri M.C.R. Mukund, Addl. SP, CBI, EO-I, New Delhi
- ✓ 6. FIR Record File
7. Office Copy

Tanweer

23.10.24

(Ashok Kumar)

Supdt. of Police

CBI, EO-I, New Delhi / ASHOK KUMAR

पुलिस अधीक्षक / Supdt. of Police

कें.अ.ब्यूरो, आर्थिक अपराध-1 / CBI, EO-I

5-बी, तीसरी मंजिल / 5-B, 3rd Floor

सी.जी.ओ. कॉम्प्लेक्स / CGO Complex

लोधी रोड, नई दिल्ली / Lodhi Road, New Delhi